

23STCV04379 23STCV04379

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-29

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Case Number: 23STCV04379 Hearing Date: July 29, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV04379

KRISTINA

RIVAS vs NATURES IMAGE, INC., et al.

July 29,

2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER/DEFENDANT'S PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD.

RULING:

The Court continues the Petition hearing to August 28, 2026, at 8:30 a.m. in Department 311, for Petitioner to file a Proof of Service addressed to Plaintiff's counsel of record.

Petitioner/Defendant to give notice.

I.

BACKGROUND

On February 28, 2023, KRISTINA RIVAS (Plaintiff) filed a Complaint against NATURES IMAGE, INC., AJ FOX, JACKIE MORALES, and SARA KOENIG (Defendants). Plaintiff alleges that Defendants wrongfully terminated her employment, after other adverse job actions, because of her age, gender, disability, race, national origin, ancestry, and complaints about sexual harassment.

On June 23, 2026, Petitioner and Defendant NATURES IMAGE, INC. filed the Petition to Confirm Contractual Arbitration Award based on the Arbitration Award.

No Opposition or Counter-Petition has been filed.

II.

LEGAL STANDARD

Unless a petition or response seeking to correct or vacate an arbitration award was filed properly based upon valid grounds, or the proceeding is dismissed, courts are required to enter judgment in conformity with the award. (Valsan Partners Ltd. Partnership v. Calcor Space Facility (1994) 25 Cal.App.4th 809, 818.) "[T]he court shall confirm the award as made ..., unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Law Offices of David S. Karton v. Segreto (2009) 176 Cal.App.4th 1, 8.)

III.

ANALYSIS

Petitioner seeks to confirm

the Arbitration Award served on June 8, 2026, and enter Judgment in favor of Defendant. The Proposed Judgment was received on June 23, 2026, but is missing the referenced Arbitration Award attachment.

“Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act.” (Lee v. Placer Title Co. (1994) 28 Cal.App.4th 503, 509-510 [where notice was not mailed to the “office address as last given by that person on any document filed in the cause,” per Code Civ. Proc., § 1013, subd. (a), notice was ineffective, and order entered was void]. Accord, Silver v. McNamee (1999) 69 Cal.App.4th 269, 279.)

Courts and litigants have the right to rely on court records in ascertaining attorneys of record until they receive a notice of substitution of attorney. (McMillan v. Shadow Ridge at Oak Park Homeowner’s Assoc. (2008) 165 Cal.App.4th 960, 965.) In case proceedings, judges should not recognize clients or attorneys who are not the attorneys of record. (McMillan v. Shadow Ridge at Oak Park Homeowner’s Assoc. (2008) 165 Cal.App.4th 960, 966.) “The attorney of record has the exclusive right to appear in court for his client and neither the party himself nor another attorney should be recognized by the court in the conduct or disposition of the case.” (Younessi v. Woolf (2016) 244 Cal.App.4th 1137, 1146.)

Although Plaintiff’s counsel reportedly was granted permission to be relieved as attorney during arbitration (Emil W. Herich Declaration, filed June 23, 2026, ¶ 8), there is no Substitution of Attorney or Notice of Change of Address filed in this case. In fact, on June 25, 2026, the Clerk served notice upon Plaintiff’s counsel of record.

Thus, the Court has nothing filed in this case showing that Plaintiff was properly served by email as a self-represented litigant, as the penultimate page of the Petition reveals.

IV.

CONCLUSION

The Court continues the Petition to ensure that Plaintiff is validly served with notice of the hearing on the

Petition.